

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."
(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- **The court encourages remote appearances to save time, reduce costs, and increase public safety.** Go to www.occourts.org/media-relations/civil.html and click on the blue box that says, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you **must** provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If **everyone** submits to the tentative ruling, call the clerk at **657-622-5231**. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 4/18/2025 10:00 AM

#	Case Name	Tentative
1	Robinson vs. La Veta Healthcare, Inc. 30-2023-01352849-CU-PO-CJC	Motion to be Relieved as Counsel for Plaintiff The motion of attorney Dawn Smith of Smith Clinesmith LLP to withdraw as attorney of record for Plaintiff Gladys Lanier, as Power of Attorney to Darryl Robinson is DENIED. Moving attorney did not file a proof of service on the client. (Code Civ. Proc., § 284, Cal. Rules of Court, rule 3.1362.) Clerk to give notice.
2	Tooker vs. Charsoo Corp. 30-2024-01407093-CU-BC-CJC	Defendant's Motion for Leave to File Cross-Complaint Defendant Charsoo Corp. dba Hardwood Flooring Depot's unopposed Motion for Leave to File Cross-Complaint is GRANTED. Defendant to file clean copy of cross-complaint within 5 days.

		Clerk to give notice.
3	Quinteros vs. Green Power Pros 30-2024-01370553-CU-BC-CJC	Plaintiff's Motion to Correct Clerical Error in Judgment Plaintiff Marta Quintero's Motion to Correct Clerical Judgment is GRANTED. Plaintiff to submit an amended judgment adding Defendant Jamie Garcia Mora within 5 days. Plaintiff to give notice.
4	Asmar vs. Alphamotive Motors, LLC 30-2024-01395887-CU-BC-CJC	Defendant's Motion to Quash Service of Summons for Lack of Personal Jurisdiction and Request for Attorney Fees Continued to 7/18/2025 at plaintiff's request
5	Lacy vs. OneOc 30-2024-01417351-CU-OE-CJC	Defendant OneOC's Motion to Compel Binding Arbitration and for Stay of Action Defendants Revhuboc Social Innovation Fund I LLC, The Orange County Center for Innovation & Social Enterprises SPC, Stephan Erkelens and Tim Shaw's Joinder to Motion to Compel Arbitration and Stay of Action and Petition to Compel Arbitration The motion to compel arbitration by Defendant OneOC, and joined by Defendants RevHubOC Social Innovation Fund I LLC; The Orange County Center For Innovation & Social Enterprises SPC; Stephan Erkelens; and Tim Shaw (collectively, "RevHub Defendants"), is GRANTED. The petition to compel arbitration by the RevHub Defendants is GRANTED. The court declines to consider Plaintiff's untimely opposition, which was due on 4/7/2025 but not filed until 4/10/2025. (See Code Civ. Proc., ¶ 1005, subd. (b); <i>Jack v. Ring LLC</i> (2023) 91 Cal.App.5th 1186, 1210 [court properly refused to consider late-filed papers].) Defendants seek to compel arbitration pursuant to pursuant to the Federal Arbitration Act (9 U.S.C. § 1, et seq.) and Code of Civil Procedure Sections 1281 et seq. The Federal Arbitration Act ("FAA") "applies where there is 'a contract evidencing a transaction involving commerce.'" (<i>Allied-Bruce Terminix Companies, Inc. v. Dobson</i> (1995) 513 U.S. 265, 277, quoting 9 USC § 2].) A court's role in considering a petition to compel arbitration under the FAA is limited to "determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement